



Dispute Resolution in Sports

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Introduction

- Studied Business law , practiced Sports law
- 2006: Joined CAF as a Development program manager
- 2008: Joined FIFA as legal counsel at the player's status departement
- 2010: Returned back to Chad
- 2011: Created a consultancy firm specialized in Sports and business law
- 2011-2017: Various positions (non sport related)
- 2018-2021: CAF Director of Legal Affairs and compliance
- Since october 2022: Of Counsel at Morgan Sports Law



Dispute Resolution in Sports

Types of disputes

- **On the field-of-play disputes**
 - Decisions of referees/umpires in enforcing the rules of the game
- **Disciplinary:** Sanctions applied by an international body to its members, Clubs and Players (e.g., doping, eligibility, accidents or incidents on the field).
- **Non Disciplinary:** financial fights between national bodies, clubs, players and players agents (e.g., issues involving sponsorship agreements, media rights, transfer regulations and employment issues)
- In practice, sport-related disputes overlap with many different areas of law.



Disciplinary matters

Dealing with disciplinary matters i.e., minimum standards that must be complied with by sport governing bodies to ensure that their procedures are fair and lawful.

Discipline integral to the efficient regulation of sport – every sporting code has some form of Disciplinary Code – offences, procedures, sanctions.

Disciplinary Procedure – minimum requirements



Disciplinary procedures

Cardinal rule – legal certainty

- Rules must clearly set out what amounts to a breach of the rules and the sanctions that may be imposed.
- *CAS 94/129 USA Shooting & Q. / Union Internationale de Tir (UIT)*, award of 23 May 1995, paragraph 34.
 - The fight against doping is arduous, and it may require strict rules. But the rule-makers and the rule-appliers must begin by being strict with themselves. Regulations that may affect the careers of dedicated athletes must be predictable. They must emanate from duly authorised bodies. They must be adopted in constitutionally proper ways. They should not be the product of an obscure process of accretion. Athletes and officials should not be confronted with a thicket of mutually qualifying or even contradictory rules that can be understood only on the basis of the *de facto* practice over the course of many years of a small group of insiders.



Legal certainty

Cardinal rule – legal certainty

- *CAS 2004/A/725 United States Olympic Committee (USOC) v. International Olympic Committee (IOC) & International Association of Athletics Federation (IAAF), award of 20 July 2005,*
 - *“... clarity and predictability are required so that the entire sport community are informed of the normative system in which they live, work and compete, which requires at the very least that they be able to understand the meaning of rules and the circumstances in which those rules apply*



Procedural Fairness

- **Fair – natural justice**
 - Fair and proper notice – usually notice period set out in the rules
 - Consequences must be known in advance.
 - Full and fair opportunity to answer the case – on fact and the law
 - Impartial decision makers.
- **Decision must not be arbitrary or irrational**
- **Sanction proportionate to the breach or contravention**



Disciplinary process at CAF

CAF judicial bodies are:

- CAF Disciplinary Board
- CAF Appeal Board



CAF Disciplinary Board- *Jurisdiction*

(Ratione materiae)

The Disciplinary Board is authorized to sanction any breach of CAF Regulations which does not come under the jurisdiction of another body of the Confederation (art. 10 of the CDC).

The Disciplinary Board is responsible for:

- sanctioning infringements which may or may not have escaped the match officials' attention;
- sanctioning all offences which occur prior to, during, or after a fixture;
- rectifying obvious errors in disciplinary decisions based on referees' reports;
- extending the duration of suspensions incurred automatically by an expulsion;
- pronouncing additional sanctions to those imposed by the referee, such as a fine. (Art. 12 of the CDC).
- The Disciplinary Board is also competent for all doping cases.

CAF Appeal Board – *Jurisdiction* (*Ratione materiae*)



The Appeal Board is responsible for deciding appeals against any of the Disciplinary Board's, or other committee's decisions that the CAF Regulations do not declare as final or referable to another body. (Art. 13 of the CDC).



CAF Judicial Bodies- *Jurisdiction* (*ratione personae*)

Article 45 of the CAF Statutes provides that CAF Judicial bodies are competent to sanction :

- National Associations
- Clubs
- Officials
- Players

For violations of CAF Statutes and Regulations and decisions of the competent bodies, or in case of non-sporting or indecent conduct.

The sanctions will be pronounced in accordance with CAF Statutes, CAF marketing and Competitions Regulations as well as CAF Disciplinary Code.



Sanctioned behaviors

National associations, clubs and officials who willfully, unintentionally or negligently violate the provisions of the CAF Statutes, Regulations and the decisions of the competent bodies, or who behave in an unsporting, unethical or unreasonable manner may be penalized in accordance with the provisions of the Regulations. (art. 87 of the CDC)

- **Principles of Conduct:**

National associations, clubs, officials and members, as well as their players, shall respect the principles of loyalty, integrity, sportsmanship and ethics. (art 82 of the CDC)



Sanctioned behaviors

- **Responsibility:**

- National Associations and clubs are responsible of the conduct of their players, officials, spectators;
- Host association or Club are responsible for order and security both inside and around the stadium before, during and after the match (art. 83 of the CDC)

- **Culpability:**

Infringements are punishable regardless of whether they have been committed deliberately, negligently or unintentionally.(art. 84 of the CDC).

Sanctions

- Against natural and legal persons:

- (a) warning
- (b) reprimand
- (c) fine
- (d) return of prizes.

- For natural persons:

- (a) caution
- (b) expulsion
 - (a) match suspension
 - (b) ban from the dressing rooms and/or the substitutes' bench
 - (c) ban from entering a stadium
 - (d) ban on taking part in any football-related activity.



Sanctions

For legal persons:

- (a) ban on registering new players;
- (b) playing a match behind closed doors;
- (c) playing a match on neutral territory;
- (d) ban on playing in a particular stadium;
- (a) annulment of the result of a match;
- (b) exclusion;
- (c) awarding of a match by default;
- (d) deduction of points.



Disputes of a non-Disciplinary Nature

- **Alternative Dispute Resolution Methods**
 - There are various types of ADR processes which parties can engage in to settle disputes without litigation.
 - The various types of ADR are:
 - 1. Conciliation
 - 2. Mediation
 - 3. Arbitration



Disputes of a non-Disciplinary Nature

Conciliation

- It is a voluntary, flexible and confidential process. In conciliation the parties seek to reach an amicable dispute settlement with the assistance of the conciliator.
- The parties are flexible to agree and define the time, structure and content of the conciliation proceedings.
- The parties are to agree on the appointment of the conciliator, such conciliator should be impartial and independent.
- In conciliation, the conciliator plays an active role in the process, may even be requested by the parties to provide them with a non-binding settlement proposal.

Disputes of a non-Disciplinary Nature



Mediation

- This is an informal but structured dispute settlement procedure, in terms of which the mediator assists the parties to resolve the dispute by facilitating discussions between the parties, assisting them in identifying issues, clarifying priorities, exploring areas of compromise and giving options in an attempt to resolve the dispute.
- Attendance to the mediation process is voluntary by the parties, except where it is mandated by statute or a contractual clause.
- The role of the mediator is to facilitate and assist the parties in reaching an amicable settlement. The mediator assists the parties throughout the mediation process however the ultimate decision of final resolution is taken and reached by the parties themselves.
- Unlike a conciliator who plays an active role in conciliation, the mediator will not make any proposals but will rather assist the parties in communication and negotiation procedures.

Disputes of a non-Disciplinary Nature



Arbitration

- This is also an alternative to traditional litigation. It will only take place through an agreement between the parties involved in the dispute. Arbitration is a formal procedure in which an arbitrator is chosen to be a decision maker in resolution of the dispute between the parties, the arbitrator may conduct the case just like a trial or may use a different procedure. In all cases, the key role of the arbitrator is to make an impartial decision based on the arguments and evidence before him/her.
- The arbitrator essentially assumes the role of a judge. They will hear arguments and evidence presented by the parties and will then make a binding decision.
- Unlike conciliation and mediation, arbitration adopts the adversarial system.

Disputes of a non-Disciplinary Nature



- The key similarities between the abovementioned methods of ADR is that they are private proceedings and are flexible and allow parties discretion in the structure (time/place) adopted for the proceedings.



Court of Arbitration for Sports (CAS) : an Overview

CAS / TAS



In order to resolve sports-related disputes through arbitration and mediation, two **independent bodies** were created:

- The **Court of Arbitration for Sport** (“CAS”) in 1984
- The **International Council of Arbitration for Sport** (“ICAS”) in 1994.

The seat of both ICAS and CAS is **Lausanne, Switzerland**.

Need to offer a quick and inexpensive procedure to settle sports related disputes.

Highest arbitral court in the world of sports. Awards are final and binding.



CAS/ TAS

- CAS maintains a list of arbitrators and provides for the arbitral resolution of sports-related disputes through arbitration conducted by Panels composed of one or three arbitrators.
- CAS maintains a list of mediators and provides for the resolution of sports-related disputes through mediation. The mediation procedure is governed by the CAS Mediation Rules.



CAS Procedure

- Contractual relations or torts – (Ordinary arbitration or mediation)
- Disputes related to anti-doping matters and imposing relevant sanctions (Anti-doping proceedings)
- Disputes resulting from decisions taken by the bodies of sports federations– (Appeals arbitration procedure)
- Timeline: Ordinary procedure – between 6 and 12 months
Appeals procedure – within 6 months



Parties in litigation

Parties:

- Players, athletes, federations, agents and clubs.
- Ordinary procedures: Any party having a stake or interest in sports, provided there is an arbitration agreement before CAS, and CAS has expert arbitrators on such dispute.
- Nature of disputes: Doping, contracts, training compensation, commercial agreements, transfers.



Competency of CAS

- Written agreement between the parties

Such agreement could:

- a) Appear in a contract
- b) Appear in the statutes or regulations of a sports organization.

Competency of CAS: case of football



FIFA accepts jurisdiction of the CAS

[Art. 56 of the FIFA Statutes \(March 2022\):](#)

1. FIFA recognizes the independent Court of Arbitration for Sport (CAS) with headquarters in Lausanne (Switzerland) to resolve disputes between FIFA, member associations, confederations, leagues, clubs, players, officials, football agents and match agents.
2. The provisions of the CAS Code of Sports-related Arbitration shall apply to the proceedings. CAS shall primarily apply the various regulations of FIFA and, additionally, Swiss law.



Article 58 of FIFA Statutes (March 2022):

1. The confederations, member associations and leagues shall agree to recognize CAS as an independent judicial authority and to ensure that their members, affiliated players and officials comply with the decisions passed by CAS. The same obligation shall apply to football agents and match agents that are licensed by FIFA.
2. Recourse to ordinary courts of law is prohibited unless specifically provided for in the FIFA regulations. Recourse to ordinary courts of law for all types of provisional measures is also prohibited.

CAF



ARTICLE 48 of CAF Statutes:

- 1. CAF authorizes appeals to the Court of Arbitration for Sport; an independent arbitration tribunal based in Lausanne (Switzerland), to resolve any disputes between CAF, national associations, members, leagues, clubs, players, officials, and licensed match agents and licensed players' agents.
- 2. The Code of Sports-related Arbitration shall govern the arbitration proceedings. With regard to substance, CAS shall apply the various regulations of CAF and FIFA or, if applicable, of national associations, members, leagues and clubs, and, as a last resort, Swiss Law.
- 3. Only CAS shall be empowered to adjudicate on appeals against any decisions or disciplinary sanctions taken in the last instance by any legal body of CAF or FIFA, a national association, league, or club. Any appeal must be filed with CAS within ten (10) days following the notification of the decision.

AFC

Article 62 of the AFC Statutes:

- 1. The AFC recognizes the independent Court of Arbitration for Sport (CAS) with headquarters in Lausanne (Switzerland) to resolve disputes between the AFC and the other Confederations, Member Associations, Leagues, Clubs, Players, Officials, Intermediaries and licensed match agents.
- 2. The provisions of the CAS Code of Sports-related Arbitration shall apply to the proceedings.
- 3. The CAS shall apply the various regulations of the AFC, and additionally where relevant, the Laws of Malaysia.



CAS Procedure

- Official languages: English, French and Spanish. Parties can also agree on a different language, provided CAS agree and the arbitrators have knowledge of that language.
- CAS arbitrators and mediators may not act as counsel or expert for a party before the CAS (No Double Hatting).
- Upon filing of the request/statement of appeal, the Claimant/Appellant shall pay a nonrefundable Court Office fee of Swiss francs 1,000, without which the CAS shall not proceed.



THANK YOU